

BEFORE THE FEDERAL MARITIME COMMISSION

PELOTON INTERACTIVE, INC.

Complainant,

v.

FLEXPORT INTERNATIONAL LLC,

Respondent.

Docket No. 24-19

DECLARATION OF ALLISON N. SKOPEC

I, Allison N. Skopec, hereby declare as follows:

1. I am an attorney at Holland & Knight LLP, counsel for Complainant Peloton Interactive, Inc. (“Peloton”) in the above-captioned matter.

2. I am a member in good standing of the Bar of the State of New York and have filed an appearance in this proceeding.

3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.

4. Flexport’s production remained substantially deficient throughout this litigation.

5. Flexport made its initial production of documents on December 13, 2024. In that initial production was a spreadsheet containing 94,198 lines of data downloaded from Flexport’s CORE platform. (“Download 1”). Ex. 1, Third Declaration of Kristine Little.

6. In Download 1, Flexport only produced data from October 2021 onward, unilaterally cutting of the relevant time period for document production. Ex. 2, Letter to Flexport, at 3.

7. As early as December 16, 2025, Flexport claimed that it had made its “full production” available to Peloton, including its Download 1 which Flexport stated “detail[ed] each status update for each and every shipment at issue in this litigation.” Respondent’s Response to Complainant’s Motion for Modification of the Document Production Deadline, Dkt. 25, at 7 (Dec. 16, 2025).

8. On January 21, 2025, Flexport stated that, “[t]o be clear, Flexport produced all documents relating to every shipment for which charges were assessed as identified in Peloton’s Exhibit A.” Respondent’s Opposition to Peloton’s Motion to Compel, Dkt. 33.

9. Flexport’s deficient production persisted into the spring of 2025, when Peloton continued to raise concerns over its incompleteness. On March 24, 2025, Flexport and Peloton held a meet and confer to discuss objections to 143(b)(6) deposition topics, and also discussed the cutoff date of Download 1. Ex. 3, March 24, 2025 Meet and Confer.

10. On March 25, 2025, the Parties met with the Presiding Officer to discuss ongoing discovery disputes, one of which was the unilateral cutoff date in Download 1. Ex. 4, Mar. 25, 2025 Meeting Transcript email.

11. On April 1, 2025, Peloton sent a letter to Flexport reiterating the outstanding deficiencies and formally requesting the full Events Download. Ex. 2.

12. On April 4, 2025, the Parties filed a Joint Status Report in which Peloton reiterated its ongoing concerns regarding the insufficiency of Flexport’s spreadsheet production. See Joint Status Report, Dkt. 50. In that same report, Flexport stated that it “has provided or shall provide each and every document in its possession which the Order mandates be produced,” as of April 4, 2025.

13. On the same day, Peloton sent a direct email to Flexport pressing for resolution of the unresolved discovery issues. Ex. 5, April 4, 2025 Email Exchange re: Discovery Deficiencies.

14. On April 6, 2025, Flexport produced Download 2 containing 179,765 lines of data covering the time period of April 2021 to October 2021. Ex. 1.

15. On the same day, Flexport stated that it confirmed “all documents have been uploaded.” Ex. 6, April 6, 2025 Email Exchange re: Peloton v. Flexport; April 3 Meet and Confer email chain.

16. On April 25, 2025, Flexport produced Download 3 containing 1,656 lines of data covering the time period of August 2020 to April 2021. Ex. 1.

17. On May 20, 2025, again Flexport claimed that “there are no additional responsive documents to the discovery requests.” Ex. 7, May 20, 2025 Email Exchange re: Dkt. No. 24-19 - Peloton's Second Supplemental Responses email chain.

18. Peloton first disclosed Mr. Greg Smith as its damages expert on December 19, 2024. Ex. 8, Disclosure of Intent to Use Expert Witnesses.

19. On May 21, 2025, Flexport requested all available dates for the deposition of Peloton’s expert, Mr. Greg Smith. Ex. 9, Peloton v. Flexport – Supplemental Expert Report email chain (May 21, 2025 11:32 am email from Robert Borak).

20. Peloton responded the same day, offering May 28 and May 30 as available dates, and requested confirmation to facilitate Mr. Smith’s travel plans. Ex. 9 (May 21, 2025 14:44 pm email from Allison Skopec).

21. Flexport’s counsel replied that he was unavailable on both proposed dates due to conflicting depositions and requested additional options. Ex. 9 (May 21, 2025 5:51 pm email from Robert Borak).

22. On May 22, 2025, Peloton offered May 27 as a third possible date. Ex. 9 (May 22, 2025 1:22 pm email from Allison Skopec).

23. Peloton did not receive a response for 48 hours, requiring counsel to follow-up with Flexport's counsel and to reiterate the fast approaching close of discovery, the need to be considerate of Mr. Smith's schedule, the three open dates which Peloton had already offered for the deposition, and Peloton's readiness to proceed with the deposition on May 27. Ex. 9 (May 24, 2025 5:18 pm email from Allison Skopec).

24. Flexport's counsel responded on May 27, 2025 that May 27, 28, and 30 were all unavailable due to his deposition schedule, and that he had three depositions set for June 2. He proposed June 3 as the only feasible date. Ex. 9 (May 27, 2025, 2:32 pm email from Robert Borak).

25. On May 28, 2025 Peloton confirmed Mr. Smith's availability for June 3, 2025 with Flexport's counsel and suggested the parties submit a brief joint statement to the Presiding Officer. Ex. 9 (May 28, 2025, 4:01 pm email from Allison Skopec).

26. Flexport did not respond to this proposal. Ex. 9.

27. On June 2, 2025 Peloton again contacted counsel for Flexport, seeking confirmation and the log-in information for the deposition set for the following day. Ex. 9 (June 2, 2025, 5:34 pm email from Kristine Little).

28. Flexport did not respond to this request. Ex. 9.

29. On the day of the deposition, June 3, Greg Smith waited in Holland & Knight's office for three hours for the deposition to begin.

30. On the morning of June 3, 2025, Peloton contacted Veritext to request the log-in details for Mr. Smith's deposition. Ex. 10, Re: Deposition of Witness Greg Smith email chain (June 3, 2025, 7:00 am email from Allison Luzwick).

31. Peloton learned from Veritext that no deposition had been scheduled. Ex. 9 (June 3, 2025, 7:16 am email from Katren Koat).

32. Peloton also sent multiple emails to Flexport's counsel on the same morning of June 3 seeking the necessary deposition details. Ex. 9 (June 3, 2025, 7:03 am email from Allison Luzwick); Ex. 10 (June 3, 2025, 9:11 am email from Allison Luzwick).

33. Flexport replied that the deposition had never been confirmed and that proceeding would violate the Scheduling Order due to the absence of a discovery extension. Ex. 10 (June 3, 2025, 9:41 am email from Robert Borak).

34. Peloton responded with a detailed timeline of prior communications, stating that Peloton was present with Mr. Smith and prepared to proceed. Peloton warned that if no response was received by 10:20 AM ET, Peloton would assume Flexport did not intend to depose Mr. Smith. Ex. 10 (June 3, 2025, 10:06 am email from Allison Luzwick).

35. At 10:36 AM, Peloton confirmed that no response had been received and that they would proceed under the assumption that the deposition would not take place and that discovery was closed. Ex. 10 (June 3, 2025, 10:36 am email from Allison Luzwick).

I certify under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: October 8, 2025

/s/ Allison N. Skopec
Allison N. Skopec
Holland & Knight LLP